

EXECUTIVE SUMMARY FOR THE MAYOR, TRUSTEES, AND VILLAGE COUNSEL

*Proposed Local Law Concerning Nonresidential Property, Accessory Structures, Photography,
and Events*

TO	Mayor Marc D. Citrin and the Board of Trustees
FROM	David McFadden and Robin McFadden
DATE	August 5, 2026
PROPERTY	Historic Boathouse, 61 Turtle Point Road (separate tax lot)
RE	Summary of two letters and four exhibits submitted for the public hearing announced for August 20, 2026
COPIES	Village Clerk and Village Attorney

Dear Mayor Citrin and Trustees:

We submit this executive summary for the convenience of the Board and Village Counsel. It consolidates the factual, legal, comparative, and policy points set out in our two letters and four exhibits concerning the announced local law affecting nonresidential structures, property uses, photography, and events.

Our central requests are straightforward: publish the complete text; identify the gap left by existing law; distinguish residential occupancy from other temporary uses; address Chapter 51 directly; and consider neutral, impact-based standards and a low-impact safe harbor before adopting any categorical prohibition.

1. Publish the complete proposal and record before asking residents to defend or oppose it

The July 16 agenda and the Mayor's July Monthly Message describe discussion of "rentals of non-residential properties" and a proposed local law prohibiting the rental of "accessory structures" such as boathouses, barns, garages, pools, and tennis courts to the public. They do not disclose the operative draft, the Code chapter, or chapters to be amended, definitions, findings, exemptions, penalties, enforcement standards, appeal rights, or the relationship to Chapters 25, 51, and 100.

We therefore request:

- immediate publication of the complete current draft, including title or proposed number, findings, definitions, operative provisions, exemptions, enforcement, penalties, effective date, transition provisions, severability language, and any attachments;

- a redline showing every proposed change to Chapters 25, 51, 100, or any other affected Code provision;
- the resolution or other formal action scheduling the August 20 hearing and the complete hearing notice; and
- July 16 minutes or draft minutes and the timestamp in the meeting video at which item 8(f) was discussed.

If the draft is first released only shortly before August 20, materially revised after publication, or changed during the hearing, the Board should keep the hearing record open or adjourn and take no vote that evening.

2. Distinguish existing Airbnb restrictions from a six-hour, owner-supervised photography session

Village residents agree that short-term residential rentals are not appropriate for Tuxedo Park. With public support, David participated in the passage of Local Law 1-2018. Section 100-6(G) limits residence buildings to permanent residence purposes and prohibits advertising inconsistent occupancy; Section 100-2 defines residence buildings and permanent residence purposes by reference to occupancy of at least thirty consecutive days. A boathouse “under no circumstances shall be used for residence purposes.”

The historic boathouse session was factually different:

- one still-fashion photography session, on a weekday, from approximately 10:00 a.m. to 4:00 p.m.;
- use of a nonresidential boathouse as a temporary visual location, with no one sleeping, living, keeping house, or occupying the structure as a home or sleeping place;
- owners retained possession and control throughout, and no residential tenant, guest, or household received possession; and
- no public attendance, admission charge, overnight use, road closure, public-road staging, amplified sound, or identified police, code, noise, traffic, or safety incident.

Compensation may raise a separate Chapter 51 or land-use question, but it does not transform every temporary use into short-term residential occupancy. If the Board wishes to regulate photography, filming, or events, it should define those activities directly and use neutral standards tied to measurable impacts, rather than extend Airbnb terminology from residential occupancy to property.

3. Chapter 51 already covers photographic sessions, and its ambiguities should be resolved openly

Chapter 51 expressly regulates filming, video production, photographic sessions, aerial photography, recording, and similar activities. Section 51-1 requires prior written Board

permission, imposes an eight-hour limit, restricts “business or commercial gain,” and protects privacy, safety, and tranquility. Section 51-2 exempts only normal, occasional family photography conducted entirely on the family’s premises and for no commercial purpose; the commercial-gain language was added in 2011.

We recognize the serious textual issue the Village may raise: Chapter 51 covers photographic sessions, requires permission, and states that such activity may not be undertaken for business or commercial gain. At the same time, the session-based permission structure and the history of administration warrant transparent clarification are going forward. We therefore ask the Board to:

- publish Local Law 1-2011, together with its minutes, notices, memoranda, and stated purpose, and explain how Chapter 51 has been interpreted and enforced since 2011; and
- reconcile any new law with both Chapter 51 and Chapter 100, so that residents are not exposed to overlapping, undefined, and selectively applied restrictions.

Our position is prospective. The existing text presents a serious compliance question, and the announced amendment presents a separate drafting and proportionality question. We seek modern, objective standards that give residents fair notice and give the Village enforceable, uniform rules.

4. “Commercial gain” requires neutral, impact-based administration

Exhibit C and the open letter document decades of professional and institutional image-making in Tuxedo Park, including editorial shoots, architectural books, real-estate photography and video, design portfolios, club events, documentaries, and reported television productions. Real-estate listing shoots, architectural features, fashion shoots, and book or magazine projects of comparable scale can impose identical physical effects—cars, hours, equipment, and neighborhood impacts—even though their downstream publications differ.

A broad interpretation of “business or commercial gain” resting solely on economic benefit could reach:

- real-estate listing photography, video, virtual tours, and drone imagery;
- architectural, interior, garden, and landscape photography for magazines, books, portfolios, and professional websites;
- sponsored content and professional social-media posts by resident influencers and executives; and
- owner-hosted charitable events, professional recordings, and institutional image-making at the Tuxedo Club and other entities.

Regulation should therefore turn principally on physical impacts—duration, frequency, personnel, vehicles, parking, noise, lighting, road use, insurance, and municipal-service

burdens—rather than on the subject, the speaker, or the publication. Any new law should avoid content-, speaker- or viewpoint-based distinctions where objective impact criteria are available.

5. Peer communities demonstrate permit and safe-harbor alternatives

Exhibit A surveys historic, architecturally significant, and high-value New York communities, including Cold Spring, Newburgh, Kingston, Sleepy Hollow, Irvington, East Hampton, Southampton, Sag Harbor, Bronxville, Old Westbury, Rhinebeck, and Cooperstown. It finds that:

- Historic character does not ordinarily result in categorical bans on ordinary, containing commercial still photography on private property;
- The prevailing model is regulation through permits or thresholds focused on hours, duration, personnel, vehicles, parking, noise, insurance, neighbor notice, public-property use, and reimbursable municipal costs; and
- a rare national counterexample—Palm Beach, Florida—rests on extensive municipality-wide findings about traffic, parking, and barrier-island access, which strengthens the case for documented local need if Tuxedo Park chooses a materially stricter path.

Exhibit A proposes a neutral safe harbor and permit structure for Tuxedo Park, including:

- a contained still or motion shoot with limited daily hours and capped annual frequency, personnel, and vehicles;
- onsite parking, with no public attendance, admission charge, road closure, or staging on Village property;
- no amplified sound, exterior generators, intrusive exterior lighting, or unauthorized drone operation;
- defined daytime hours and compliance with existing noise, fire, building, traffic, and privacy protections;
- permit review only above objective impact thresholds, with written reasons and definite decision deadlines; and
- insurance and reimbursement of actual Village costs only where the scale of activity requires municipal services.

6. Preservation, taxes, and marketability are part of the public-welfare balance

Exhibit D presents Village budget and assessment data and places the proposed law in a broader policy context:

- Tuxedo Park homeowners bear substantial restoration, maintenance, tax, and assessment costs; these obligations do not create immunity from regulation, but

they are relevant when evaluating whether new restrictions are necessary and proportionate;

- The 2026 final assessment roll identifies the restored McFadden boathouse parcel as a standalone waterfront improved lot with an assessment above two identified class-312 comparators, illustrating the significant value assigned to the property; and
- modern buyers, including executives, entrepreneurs, authors, designers, and influencers, often consider home-office and quiet creative uses part of a property's usefulness, and vague rules that potentially reach interviews, sponsored content, portfolios, branding, or gentle image-making can affect attractiveness and marketability.

Section 100-6.1 of the Village Code expressly states that the Gateway Overlay District is intended, among other purposes, to “stabilize and improve property values” while allowing reasonable use of property. That objective supports careful examination of fit, proportionality, and narrower alternatives before the adoption of broad new restrictions on negligible impact uses.

7. FOIL requests and the need to preserve the legislative and enforcement record

On August 4, we submitted Freedom of Information Law requests seeking:

- drafting history, complaints, factual materials, Chapter 51 applications and enforcement records, relevant Police Department records, and evidence of comparable uses;
- applications or Board approvals concerning drone photography used in real-estate marketing; and
- records concerning documented filming and photography events, including at private residences and institutional properties such as the Tuxedo Club.

We are not asking the Mayor or Trustees to conduct the FOIL search personally. We are placing the Board on notice that these records bear directly on necessity, neutrality, consistency, proportionality, and equal treatment. We therefore ask the Board to:

- preserve drafts, redlines, version metadata, emails, text messages, memoranda, complaints, photographs, social-media screenshots retained by officials, agendas, minutes, audio and video, calendar entries, enforcement inquiries, Police Department communications, and correspondence with applicants, institutions, or residents related to the proposed law and its factual basis; and
- avoid closing the hearing record before residents have had a reasonable opportunity to review responsive records and encourage rolling production rather than delaying all production until the oldest material has been located.

8. Requested process and substantive approach

We respectfully ask the Board to:

- publish the complete draft law, the affected Code provisions, and a clear redline promptly, and post these materials prominently on the BOT Agendas page, the Official Notices page, the homepage Meeting and Events Calendar, a dedicated August 20 event page, and the customary physical posting locations, including gate bulletin boards and Village Hall;
- disclose hearing procedures in advance, including the precise time and location, accessibility arrangements, speaker registration, time limits, rules for written and electronic submissions, the record-closing date, and confirmation of inclusion in the legislative record;
- keep the August 20 hearing open, or adjourn it, if disclosure is late or the draft materially changes, and take no final vote until residents and Trustees have had adequate time to review the operative text and the supporting record;
- consider a neutral, village-wide, impact-based safe harbor and permit system rather than a categorical, property-specific, speaker-specific, or content-based prohibition, and apply any rule prospectively and uniformly with reasonable transition protections; and
- explain the proposal's origin, the concerns it is intended to address, the factual basis supporting it, and the narrower alternatives considered.

9. Conclusion

We do not claim an unrestricted right to compensated activity or immunity from reasonable regulation. We recognize the Board's authority and share its interest in protecting privacy, safety, and tranquility. Our request is for ordinary legislative transparency and for proportionate, neutral standards.

A six-hour, owner-supervised photography session involving no sleeping, no residential occupancy, and no transfer of possession is not an Airbnb rental under Chapter 100. The Village already possesses tools in Chapter 51 and other provisions to regulate photography, filming, and events. Before adopting a categorical prohibition on nonresidential structures or property uses, we ask the Board to identify the specific gap those tools leave, consider objective permit and safe-harbor alternatives, and adopt a rule grounded in documented local conditions and measurable impacts.

Documents summarized

Letter 1: Request for Prompt Publication and a Meaningful Hearing Record. Letter 2: Open Letter on the Factual and Public-Welfare Basis for the Proposed Law. Exhibit A: Historic New York Communities and Filming Regulation. Exhibit B: Distinction Between the Airbnb Law and a Photography Session. Exhibit C: Tuxedo Park Photography,

Filming, and Publication History. Exhibit D: Taxes, Regulatory Burden, and Property Marketability.

We ask that this summary and all four exhibits be accepted into the legislative and hearing record.

Respectfully submitted,

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